

duty or some contractual obligation, not prompted by honest mistake ..., but by some interested or sinister motive[,] ... not simply bad judgment or negligence, but rather ... the conscious doing of a wrong because of dishonest purpose or moral obliquity; ... it contemplates a state of mind affirmatively operating with furtive design or ill will.” (*Silver Orgs.* 217 Cal.App.3d at 99 quoting *Pugh v. See’s Candies, Inc.* (1988) 203 Cal.App.3d 743, 764.) Section 426.50 “expressly disallows” denial of a motion on a mere showing of neglect, inadvertence, or oversight. (*Id.* at 101.)

“The principle is well settled in this state that a defendant may cross-complaint for a declaration of the duty of a cross-defendant to indemnify a cross-complainant in the event the latter is held liable to the plaintiff in the main action.” (*Brokate v. Hehr Mfg. Co.* (1966) 243 Cal.App.2d 133, 137-38.) Bringing an action for indemnity or contribution by cross-complaint promotes judicial efficiency and allows related evidence and matters of proof to be consolidated in a single proceeding. (*Valley Circle Estates v. VTN Consolidated, Inc.* (1983) 33 Cal.3d 604, 614-15.) As the California Supreme Court noted, “[overburdened] courts gain nothing from a rule which would discourage the filing of cross-actions in favor of independent actions.” (*Id.* at 615 quoting *Shepard & Morgan v. Lee & Daniel, Inc.* (1982) 31 Cal.3d 256, 261.) The Court has “consistently concluded that the cross-action procedure represents a ‘more orderly and expeditious resolution of the controversy’ in multiple party cases.” (*Ibid.*)

Conclusion

Defendants’ motion for a nunc pro tunc order is **denied** as moot. There is no order to ‘correct.’ The Cross-Complaint has already been accepted and filed.

11. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
***HEARING ON MOTION IN RE: RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25**
TENTATIVE RULING GRANTING ARCH INSURANCE COMPANY’S MOTION FOR LEAVE TO FILE A
COMPLAINT IN INTERVENTION
FILED BY: DUFALL, SIOBHAN
TENTATIVE RULING:

Continued by the Court to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

12. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ELIYAHU Y KAPLUNOVSKY**
FILED BY: JRT FREIGHT, LLC
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 12 and 13. Counsel Eliyahu Y. Kaplunovsky, who represents Defendants JRT Freight LLC and Luis Martinez (“Defendants”), filed a Motion to Be Relieved as Counsel for both Defendants. The Motion is **granted** as set forth herein.